

**NOTICE OF EQUITABLE INTEREST AND LIMITATION ON ABILITY TO CONVEY
TITLE**

Provided pursuant to Maryland Real Property Article § 10-715(c)(2)

Property: [FULL ADDRESS], [COUNTY], Maryland [ZIP]

Tax Account / Parcel ID: [ID]

Assignor: Rich Fabiani, an individual, d/b/a FRESH GROUND

Prospective Assignee: [BUILDER LEGAL NAME]

Date: _____, 20____

Before you take an assignment of the contract of sale for the Property, Maryland law requires that I give you this written notice.

**I HOLD AN EQUITABLE INTEREST IN THE PROPERTY. I DO NOT HOLD
LEGAL TITLE, AND I MAY NOT BE ABLE TO CONVEY TITLE TO THE
PROPERTY.**

What that means:

- I am **not** the record owner of the Property. My interest arises solely from a written contract of sale with the record owner dated _____, 20____.
- What I am assigning to you are **my rights under that contract** — not the Property itself.
- Completion of the purchase depends on the seller performing under that contract and on clear, insurable title being delivered at settlement. **I cannot guarantee either.**
- You should conduct your own title examination and due diligence.

If I assign this contract and **have not** provided you with this notice, Maryland law allows you to **rescind the agreement to purchase without penalty at any time before closing**, and you are **entitled to a refund of any deposit** paid in connection with the assignment.

ACKNOWLEDGMENT OF RECEIPT The undersigned Assignee acknowledges receiving this written notice **before** the assignment of the contract of sale.

Date: _____

[SIGNATORY NAME], [TITLE], for [BUILDER LEGAL NAME]

Delivered by:

Date: _____

Rich Fabiani, d/b/a FRESH GROUND

Method of delivery: ☐ in person ☐ email to _____ ☐ mail ☐ e-
signature platform